

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 25, 2026
8:30 a.m./1:30 p.m.

2. JENNIFER ANN CHANEY V. JASON MICHAEL CHANEY

22FL0859

On March 26, 2026, Respondent filed a Request for Order (RFO) seeking a post-judgment modification of spousal and child support. He filed his Income and Expense Declaration concurrently therewith. The RFO and all other required documents were served on March 30, 2026, however they were electronically served on Petitioner's counsel, not Petitioner herself. This is a post-judgment request and therefore service was required to comply with Family Code § 215.

Petitioner filed her Responsive Declaration to Request for Order and her Income and Expense Declaration on June 8, 2026, thereby waiving any defect in service.

Respondent asks the court to modify child and spousal support to account for income that he says Petitioner has underreported.

Petitioner opposes both requests for modification. She states that there has been no change in circumstances to warrant a change in support.

This is a post judgment request to modify spousal support and as such, the court is required to take evidence on and address the Family Code § 4320 factors. The parties are ordered to appear to select trial and mandatory settlement conference dates.

The request to modify child support is continued to join with the trial on the issue of spousal support.

The court reserves jurisdiction to modify child and spousal support back to the date of filing the RFO.

TENTATIVE RULING #2: THE PARTIES ARE ORDERED TO APPEAR TO SELECT TRIAL AND MANDATORY SETTLEMENT CONFERENCE DATES FOR THE ISSUE OF SPOUSAL SUPPORT. THE REQUEST TO MODIFY CHILD SUPPORT IS CONTINUED TO JOIN WITH THE TRIAL ON THE ISSUE OF SPOUSAL SUPPORT. THE COURT RESERVES JURISDICTION TO MODIFY CHILD AND SPOUSAL SUPPORT BACK TO THE DATE OF FILING THE RFO.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF

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A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.